BY ORDER OF THE COMMANDER
JOINT BASE ELMENDORF-RICHARDSON

JOINT BASE ELMENDORF-RICHARDSON INSTRUCTION 51-501

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Law

DEPENDENT MISCONDUCT PROGRAM

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This publication implements Air Force Policy Directive (AFPD) 51-5, *Administrative Law, Gifts, and Command Relationships.* The purpose of this instruction is to establish policies, responsibilities, and procedures for the administrative disposition of misconduct committed by military dependents on Joint Base Elmendorf-Richardson (JBER) and to formally establish the JBER Dependent Misconduct Program (DMP) and Dependent Misconduct Board (DMB). It applies to all military sponsors, dependents visiting or residing on JBER, military dependents who reside off base and engage in misconduct on JBER, all commanders of units and organizations assigned, attached, or tenants on JBER, and does apply to the Army, Air Force Reserve, and Air National Guard units and members. Submit requests for waivers through the chain of command to the publications office of primary responsibility (OPR) for non-tiered compliance items. This instruction may not be supplemented or further extended. Refer recommended changes and questions about this publication to the OPR using Department of the Air Force (DAF) Form 847, *Recommendation for Change of Publication*. Route DAF Form 847 from the field through the appropriate functional chain of command. Ensure all records generated as a result of processes prescribed in this publication adhere to Air Force Instruction (AFI) 33-322, *Records Management and Information Governance Program*, and are disposed of in accordance with the Air Force Records Disposition Schedule, which is located in the Air Force Records Information Management System. See **Attachment 1** for Glossary of References and Supporting Information. The use of the name or mark of any specific manufacturer, commercial product, commodity, or service in this publication does not imply endorsement by the Air Force.

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SUMMARY OF CHANGES

This document has been substantially revised and must be completely reviewed. Major changes include a change in Installation Commander's responsibilities reference information and an update in 673 SFSOI 31-101_V1, *Security Forces Operations,* procedures compliance.

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Chapter 1

PROGRAM OVERVIEW

1.1. Overview. This instruction establishes the DMP, the DMB, and procedures for Dependent Misconduct Hearings (DMH). The jurisdiction of the DMB covers misconduct committed by juvenile and adult dependents. This instruction is to secure the good order and security of all persons and property located on JBER and shall be liberally applied to achieve those ends.

1.1.1. Current Air Force policy and federal law provide an installation commander with limited options when confronted with dependent misconduct occurring on a military installation. Debarment action or suspension of certain privileges are permissible actions delineated in Air Force publications, but provide limited flexibility. The DMP provides additional options that can be tailored to fit the unique circumstances of each case.

1.1.2. There are several matters that should be considered in determining the appropriate action when dependent misconduct occurs, including: the rehabilitation of the dependent, punishment of the dependent, protection of others from the dependent, preservation of good order and discipline, deterring others from committing the same or similar misconduct, and the impact on the sponsor and other dependent family members.

1.2. Scope. Not every instance of dependent misconduct will be disposed of under the DMP. The DMP does not replace legal processes associated with addressing criminal conduct, or installation access procedures with respect to fitness determinations or debarment processes; it is intended to compliment these processes. The DMB will meet as directed by the 673d Mission Support Group Commander (673 MSG/CC), to review all open cases of dependent misconduct. DMP cases are normally discovered via routine law enforcement activities and reporting. However, dependent misconduct can be referred by other command or leadership sources within the community (e.g., Military Housing Office, Mayors, Army Air Force Exchange Services (AAFES), Anchorage School District, etc.). The date of discovery of dependent misconduct, status of investigation/disposition, and final actions taken will be tracked. It is expected that the majority of the dependent misconduct will be reported to the DMB by the 673d Security Forces Squadron Reports and Analysis (SFS/S5PA). Unit commanders, however, may also refer cases to the DMB with recommendations for action.

Chapter 2

RESPONSIBILITIES

2.1. Installation Commander:

2.1.1. **Order and Discipline.** The installation commander is charged with the responsibility of enforcing the law and maintaining good order and discipline on the base, in accordance with DoDI 5200.08, *Security of DOD Installations and Resources and the DoD Physical Security Review Board (PSRB)*, paragraph 1.2, and DAFI 31-101, *Integrated Defense (ID),* paragraphs 3.4.4.1. through 3.4.4.5. The DMP assists to achieve this objective.

2.1.2. **Curfew Hours.** The following curfew hours are established for juveniles at JBER:

Table 2.1. Curfew Hours.

Age	Weekdays	Weekends & Holidays
15 and Under	2200-0500 Hours	2300-0500 Hours
16-17	2400-0500 Hours	0100-0500 Hours
NOTE: Juveniles may be outdoors during curfew hours (if the sponsor has received written permission from the 673 MSG/CC). Examples include, but not limited to, juveniles engaged employment, those participating in an organized base or civic activity that require the juvenile to be outside during curfew hours. Juveniles may be allowed outside past curfew hours, without prior written permission, if they are in the company of their sponsor or guardian.		

2.1.3. **Unattended Youth.** The unattended youth policy is established to supervise youth activity, prevent youth misconduct, and ensure their safety. Supervision is defined as close proximity to continuously monitor the child and provide immediate verbal instructions.

Table 2.2. Unattended Youth Policy.

Age	Left Unattended in Quarters (for 2 hours or less)	Left Unattended in Quarters (for 2 hours or more)	Left Alone overnight	Outside Unattended (to include playing)	Left in Car Unattended	Walk to School	Youth Sit Siblings in Quarters	Youth Sit Others in Quarters
0-4	NO	NO	NO	NO	NO	NO	NO	NO
5-6	NO	NO	NO	YES, playground or yard w/immediate access (visual sight or hearing distance) to adult supervision ***	NO	5 YOA may walk accompanied w/another child; 6 YOA may walk alone	NO	NO

7-8	NO	NO	NO	Yes, with access to adult assistance ****	YES	YES	NO	NO
9-11	YES; with ready access (phone number to adult supervision */***	NO for 9 & 10 YOA; YES for 11 YOA with access to adult supervision */***	NO	YES	YES	YES	9 YOA-NO; 10 YOA+ YES	9 YOA-NO; 10 YOA+ YES
12-14	YES	YES	NO for 12 YOA; 13 YOA+ YES for 1 night only	YES	YES	YES	YES*	YES**
15+	YES	YES	YES; for short TDYs or leave (must have adult supervision available to make periodic checks***)	YES	YES	YES	YES**; must be 16 YOA + for overnight stays	YES**, must be 16 YOA+ for overnight stays

Notes:
* Home Alone/Latch Key training or equivalent recommended
**Red cross babysitting training or equivalent recommended
***Adult supervision is defined as someone 18 years or older who has or assumes responsibility for the child, e.g. parent, guardian, care provider, friend
****Adult assistance is defined as a parent, guardian, care provider, or family friend that could provide assistance within a three minute radius

2.1.4. **Delegated Authority.** The 673d Air Base Wing Commander (ABW/CC) has delegated the primary authority to convene the DMB and manage the DMP to the 673 MSG/CC. The installation commander may appoint an alternate DMB President as needed by separate memorandum.

2.1.5. **Dependent Misconduct.** The installation commander is responsible for action taken in addressing dependent misconduct cases at JBER. With the exception of debarments, authority for all other administrative actions taken pursuant to this instruction is hereby delegated to the 673 MSG/CC.

2.2. Mission Support Group Commander and Deputy Commander:

2.2.1. As detailed above, the 673 MSG/CC will serve as the DMB President, presiding over meetings of the DMB. The 673d Mission Support Group Deputy Commander (MSG/CD) may also convene the DMB at his/her discretion, if deemed necessary. When a DMH is convened, the DMB President will preside as the hearing officer. In each instance the DMB President is the disposition authority for dependent misconduct addressed pursuant to this instruction.

2.2.2. The 673 MSG/CC will coordinate with 673d Air Base Wing Judge Advocate (ABW/JA) and 673d Security Forces Squadron Investigations (SFS/S2I) when referral to local law enforcement or non-military juvenile correction is appropriate.

2.3. Law Enforcement Authorities:

2.3.1. Representatives from 673 SFS/S2I and S5PA will attend all DMB meetings.

2.3.2. The 673d Security Forces Operations (SFS/S3O) duty Flight or S2I, Air Force Office of Special Investigations (AFOSI) and Criminal Investigation Division (CID), as the primary law enforcement agencies at JBER, will investigate alleged instances of dependent misconduct as appropriate and coordinate with Anchorage Municipality or State of Alaska officials, as needed.

2.3.2.1. These agencies will conduct follow-up investigations as necessary to clarify or expand upon initial reports of misconduct under review by the DMB.

2.3.2.2. 673 SFS/S5PA will maintain the records for dependent misconduct incidents when the incident occurs on the installation and a report is generated.

2.3.2.3. 673 SFS/S5PA will maintain a log of DMB cases which will include at a minimum: the incident date, case report number, subject(s) & sponsor name, address and unit of affiliation, status of investigation/disposition, and a record of the DMB final action(s) taken (e.g., warning letter, in-person hearing, debarment, etc.).

2.3.2.4. 673 SFS/S5PA is responsible for delivering any official correspondence, prepared on behalf of the 673 MSG/CC, in response to dependent misconduct presented to the subjects of DMB processes and/or their military sponsor(s) or responsible commander.

2.3.3. The 673d Security Forces Squadron (SFS) will comply with procedures outlined in 673 SFSOI 31-101_V1, when responding to a reported incident.

2.4. Staff Judge Advocate:

2.4.1. A representative from 673 ABW/JA will attend all DMB meetings.

2.4.2. 673 ABW/JA will provide legal reviews or opinions to assist the DMB regarding dependent misconduct. The legal reviews are for official use only (FOUO) and will not be released to those who have been involved in misconduct or to their sponsors.

2.4.3. 673 ABW/JA will coordinate/support investigations of dependent misconduct with 673 SFS, AFOSI, CID, and/or local law enforcement agencies, as needed.

2.4.4. 673 ABW/JA will provide a legal advisor for any formal DMH convened.

2.4.5. 673 ABW/JA will communicate to 673 SFS/S5PA any corrective actions imposed on a dependent offender which requires enforcement by 673 SFS (e.g., curfews, base restrictions, debarment, etc.).

2.4.6. 673 ABW/JA will prepare any official correspondence, on behalf of the 673 MSG/CC, to be presented to the subjects of DMB processes and/or their sponsors or responsible commander.

2.5. Unit Commanders, First Sergeants, and Supervisors:

2.5.1. Unit commanders will brief their personnel on this instruction and will require the participation of the military sponsor in the DMP process and, when requested, at hearings. Participation of military dependents in the DMB process is voluntary; however, failure to appear and to satisfy all of the DMB's orders (to include any penalties imposed) may result in a recommendation to 673 ABW/CC that the dependent be barred from JBER.

2.5.2. The unit commander and first sergeant shall attend the DMH and decide whether to require the military sponsor's supervisor to also attend the hearing. In the event the unit commander and/or first sergeant are unable to attend, they will appoint an alternate.

2.5.3. Unit commanders, first sergeants, and supervisors may counsel a military sponsor for inadequately responding to family member's misconduct.

2.5.4. First sergeants and supervisors will report all instances of dependent misconduct to their unit commanders. Unit commanders may, in turn, refer the misconduct to the DMP for disposition.

2.6. Military Sponsors and their Dependents:

2.6.1. The military sponsor is ultimately responsible for the actions of his or her family member(s) and guest(s).

2.6.1.1. The sponsor is responsible for ensuring that both adult and minor family members and guests are aware of the standards of conduct they are expected to maintain.

2.6.1.2. The sponsor will cooperate with the DMP in an effort to promote good order and discipline in the community. The success of the DMP as a rehabilitative tool ultimately rests on the willingness of dependent offenders and their military sponsors to participate in the program.

2.6.1.2.1. These efforts include participation in rehabilitative measures and compliance with administrative sanctions when directed by the DMB (e.g., supervision of base beautification detail).

2.6.1.2.2. A military sponsor's response to a family member's misconduct may be considered in determining the appropriate disposition of the dependent's case.

2.6.2. When a minor is involved in the DMP and a hearing is convened, the consent of the minor's parent or guardian is required. The consequences of non-participation or non-cooperation may result in debarment from base or revocation of certain base privileges.

2.6.3. When a dependent receives notification that a hearing will be convened, the military sponsor is required to attend, if requested, and will encourage their dependent to attend the hearing.

Chapter 3

DEPENDENT MISCONDUCT BOARD (DMB) MEETINGS

3.1. Panel. The DMB will meet as directed by 673 MSG/CC to review open cases of dependent misconduct.

3.1.1. The meetings will be attended by the DMB President, 673 SFS representatives, and a 673 ABW/JA representative. Others may attend the meeting at the invitation of the DMB President (673 MSG/CCC, CD, CD-I, etc.).

3.1.2. The date of discovery of dependent misconduct, status of investigation/disposition, and final actions taken will be tracked by the DMB Panel.

3.2. Preliminary Determination. As each case is considered, the first step is a preliminary determination, made by the DMB President, whether the alleged dependent misconduct occurred.

3.2.1. Although it should be the rare circumstance, it is possible that certain dependent misconduct referred to the DMB is more properly addressed by an immediate fitness determination or debarment.

3.2.2. If it is determined there is insufficient evidence to conclude the alleged misconduct occurred, the DMB President may either defer the case pending receipt of additional evidence or close the case as unsubstantiated.

3.2.3. In the event it is determined that the alleged misconduct occurred and an immediate fitness determination or debarment action is not necessary, a notification memorandum will be issued to the dependent sponsor.

3.3. Notification Memorandum. (see **Attachment 2.**) The notification memorandum will consist of:

3.3.1. A plain, concise, and definite statement of the essential facts constituting the alleged dependent misconduct;

3.3.2. Notice to the sponsor and dependent of the potential adverse consequences; and

3.3.3. Notice of the opportunity to provide a written response within 10 calendar days of receipt of the Notification Memorandum.

3.4. Sponsor and Dependent Submission of Written Matters. Upon receipt of matters, the DMB President may:

3.4.1. Determine the allegation is unsubstantiated and close the case.

3.4.2. Determine the allegation is substantiated but no action required.

3.4.3. Determine the allegation is substantiated and decide the corrective action.

3.4.4. Direct that the DMB meet for discussion and recommendations.

3.4.5. Convene an informal or formal DMH.

Chapter 4

DEPENDENT MISCONDUCT HEARING (DMH)

4.1. Informal/Formal Hearings. Hearings provide a mechanism to gather additional information regarding the misconduct itself as well as any evidence in aggravation, extenuation, or mitigation. In the case of juvenile offenders, hearings also provide a mechanism to ensure the juvenile is held personally accountable and may be conducive to a program of rehabilitation. **Note:** There is no entitlement to a hearing. Hearings are held solely at the discretion of the DMB President.

4.1.1. **Informal DMH.** The informal DMH will consist of the DMB President, the dependent offender, the offender's sponsor/parents when requested, and the sponsor's first sergeant. The sponsor's commander and sponsor's supervisor may attend at the DMB President's discretion.

4.1.1.1. The DMB President may hold this hearing in his/her office or a comparable space.

4.1.2. **Formal DMH.** The formal DMH will consist of the DMB President as the hearing officer, the dependent offender, the offender's sponsor/parents when requested, the sponsor's commander, the sponsor's first sergeant (see **Attachment 3**), the sponsor's supervisor, and a DMB advisory panel.

4.1.2.1. The formal DMH will be held in the JBER courtroom, unless unusual circumstances require it to convene in another location.

4.1.2.2. The formal DMH advisory panel may consist of representatives from any of the following agencies, at the DMB President's discretion: 673 ABW/JA, 673d Air Base Wing Installation Sergeant Major (ABW/SGM); 673 SFS/S2I, CID, AFOSI, JBER Family Advocacy, and any other professionals (local juvenile probation) deemed appropriate to address or positively influence dependent misconduct.

4.2. Standard of Proof. The standard of proof necessary to find that the dependent committed the misconduct in question is a preponderance of the evidence. This standard is met when the credible evidence, taken as a whole, shows that it is more probable than not that the fact sought to be proved (i.e., that the dependent committed the act) actually occurred.

4.3. DMB Hearing Procedures:

4.3.1. If the 673 MSG/CC determines that a DMH is appropriate, dependent offenders will receive a notification letter (see **Attachment 4**) by the military sponsor's e-mail or the dependent's home address. A delivery and/or read receipt should be used.

4.3.1.1. The letter will provide official notice of the alleged offense and information on the date, time, and location of the hearing.

4.3.1.2. The letter will inform the dependent and sponsor that failure to appear and to satisfy all of the DMB's orders (to include any penalties imposed) may result in a recommendation to the 673 ABW/CC that the dependent be barred from JBER due to his/her unwillingness to participate in the DMP.

4.3.2. The DMB may request the appearance of any witness(es) it deems necessary for the resolution of the case. **Note:** The Military Rules of Evidence do not apply to DMHs, and the DMB President may rely solely on hearsay evidence (to include law enforcement reports) in arriving at their decision.

4.3.3. The dependent and/or sponsor will be provided a reasonable opportunity to present matters in rebuttal, extenuation, or mitigation in the form of oral or written statements by the dependent or sponsor and documentary or tangible evidence.

4.3.4. The dependent and/or sponsor may present relevant witness testimony. **Note:** The dependent offender has no right to have military legal counsel or a civilian attorney represent him/her during the hearing, nor do they have the right to cross-examine the witness(es) called by the DMB.

4.3.5. Following the dependent's and/or sponsor's presentation(s), the DMB President will consider the case presented and determine if the alleged misconduct was committed.

Chapter 5

CORRECTIVE ACTION

5.1. Possible Actions. Consistent with any findings of misconduct, the DMB President, with the advice of the DMB advisory panel and any other representatives the DMB President deems appropriate, determines the corrective action. The DMB may impose any of the following actions on the offender. This list is not exhaustive.

5.1.1. No action.

5.1.2. Verbal counseling or admonishment by the DMB President.

5.1.3. A formal letter of admonishment or warning issued by the DMB President or the sponsor's commander.

5.1.4. Refer the offender and/or sponsor to an off-base agency for counseling or rehabilitation.

5.1.5. Refer the offender to a local government's shoplifter's education program.

5.1.6. Place certain areas or base functions off-limits to the offender.

5.1.7. Impose a curfew.

5.1.8. Suspend or revoke certain privileges, including, but not limited to: access to the base exchange or commissary, on-base driving, and entering certain buildings or accessing certain areas of the base.

5.1.9. Terminate military family housing for the offender and/or family with the concurrence of the 673 ABW/CC.

5.1.10. Require that the offender perform specified community service for a required number of hours, providing that adequate supervision is provided (e.g., refuse collection, grounds maintenance, pulling weeds, or other similar activities).

5.1.11. Refer the offender to an off-base community service program (e.g., the Salvation Army®, Goodwill®, or other similar organization).

5.1.12. Require that the offender submit a formal apology to the party or parties offended, or an essay reflecting on his/her offense. The DMB should inform the offender that an unsigned version of the essay could be published in the base paper or public affairs newsletter to deter other would-be offenders.

5.1.13. Order restitution be paid and/or made by the offender.

5.1.14. Recommend debarment of the offender to the 673 ABW/CC.

5.2. Costs. Costs for any corrective actions imposed is the responsibility of the offender and/or sponsor.

5.3. Compliance. The sponsor is responsible for ensuring the dependent's compliance with or participation in any actions imposed. Failure of a dependent to comply with the DMB's corrective actions or to participate in proceedings will be handled on a case by case basis, but may result in more severe corrective actions for the dependent.

DAVID J. WILSON, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

DoDI 5200.08, *Security of DOD Installations and Resources and the DoD Physical Security Review Board (PSRB),* 10 December 2005

DAFI 31-101, *Integrated Defense (ID),* 25 March 2020

AFPD 51-5, *Administrative Law, Gifts, and Command Relationships,* 31 August 2018

AFI 33-322, *Records Management and Information Governance Program*, 23 March 2020

673 SFSOI 31-101_V1, *Security Forces Operations*, 20 March 2017

Adopted Forms

DAF 847, *Recommendation for Change of Publication*

Prescribed Forms

None

Abbreviations and Acronyms

AAFES—-Army Air Force Exchange Services

AFI—Air Force Instruction

AFOSI—Air Force Office of Investigations

AFPD—Air Force Policy Directive

CID—Criminal Investigation Division

DAF—Department of the Air Force

DMB—Dependent Misconduct Board

DMP—Dependent Misconduct Program

DMH—Dependent Misconduct Hearing

JA—Judge Advocate

JBER—Joint Base Elmendorf-Richardson

OPR—Office of Primary Responsibility

SORN—System of Records Notice

TDY—Temporary Duty

YOA—Years of Age

Office Symbols

ABW/CC—-Air Base Wing Commander

ABW/JA—Air Base Wing Judge Advocate

ABW/SGM—Air Base Wing Installation Sergeant Major

MSG/CC—Mission Support Group Commander

MSG/CD—Mission Support Group Deputy Commander

SFS—Security Forces Squadron

SFS/S2I—Security Forces Squadron Investigations

SFS/S3O—Security Forces Squadron Operations

SFS/S5PA—Security Forces Squadron Reports and Analysis

Terms

Dependent—For the purposes of this instruction, dependent includes any person entitled to a dependent identification card or sponsored onto the base by a military member. This definition is much broader than the typical definition of "dependent" because it can include, for example, significant others who are not a spouse as well as family members or friends temporarily residing with or visiting the military member on the installation.

Minor—Any person under the age of 18 years.

Misconduct—Any violation of federal, state or local statute, Air Force Instruction, base regulation, or any other activity which is prejudicial to good order and discipline on JBER or otherwise breaches the peace on JBER. The DMB will have discretion to intervene in all appropriate cases, but such intervention does not abrogate the installation's responsibility to report cases of criminal dependent misconduct to the local authorities.

Preponderance of the Evidence—The standard of proof necessary to find that the dependent committed the misconduct in question is a preponderance of the evidence. This standard is met when the evidence as a whole shows that it is more probable than not that the facts sought to be proved (i.e., that the dependent committed the act) actually occurred. In other words, if the evidence shows a greater than fifty percent probability that the dependent committed the misconduct, the Board should find the dependent committed the misconduct.

Sponsor—The individual identified in DEERS as the sponsor of a dependent. Sponsor also includes a host of a guest from off-base or who has responsibility for the conduct of dependents in his or her charge.

Attachment 2

SAMPLE NOTIFICATION MEMORANDUM

Figure A2.1. Sample Notification Memorandum.

673 MSG/CC
Bldg 8517, 20th Street
JBER, AK 99506

MSgt John Doe
1234 Bosler Drive
JBER AK 99506

Dear MSgt Doe

The Joint Base Elmendorf-Richardson (JBER) Dependent Misconduct Board has received a report that your dependent, **Dependent Doe, [briefly describe the misconduct]**, which occurred on **Day Month Year**.

No final determination has been made finding that the alleged misconduct occurred; however if determined as alleged, such misconduct is not consistent with the maintenance of good order and discipline on JBER and would subject your dependent to potential debarment (exclusion or removal) from base. Only the JBER installation commander has the authority to debar an individual from the installation. The Dependent Misconduct Board has the authority to impose lesser sanctions/requirements as a condition of avoiding debarment.

Should the Board determine that your dependent committed the offense, an appropriate punishment will be determined. Punishments may include one or more of the following:

a. No action.

b. Verbal counseling or admonishment by the DMB President.

c. A formal letter of admonishment or warning issued by the DMB President or the sponsor's commander.

d. Refer the offender and/or sponsor to an off-base agency for counseling or rehabilitation.

e. Refer the offender to a local government's shoplifter's education program.

f. Place certain areas or base functions off-limits to the offender.

g. Impose a curfew.

h. Suspend or revoke certain privileges, including, but not limited to: access to the base exchange or commissary, on-base driving, and entering certain buildings or accessing certain areas of the base.

i. Terminate military family housing for the offender and/or family with the concurrence of the 673 ABW/CC.

j. Require that the offender perform specified community service for a required number of hours, providing that adequate supervision is provided (e.g., refuse collection, grounds maintenance, pulling weeds, or other similar activities).

k. Refer the offender to an off-base community service program (e.g., the Salvation Army®, Goodwill®, or other similar organization).

l. Require that the offender submit a formal apology to the party or parties offended, or an essay reflecting on his/her offense.

m. The DMB should inform the offender that an unsigned version of the essay could be published in the base paper or public affairs newsletter to deter other would-be offenders.

n. Order restitution be paid and/or made by the offender.

o. Recommend debarment of the offender to the 673 ABW/CC

You and your dependent have 10 calendar days from receipt of notice to submit any written matters that you want considered by the Dependent Misconduct Board prior to a final determination. The written matters may rebut the allegation or simply be matters in extenuation or mitigation.

Please acknowledge receipt of this memorandum **no later than 1400 on Day Month Year** by responding by e-mail or by telephone at (907) 552-xxxx. Should you have any further questions or concerns involving this matter, please contact me.

Sincerely

JANE F. DOE, Col, USAF
Dependent Misconduct Board President

Attachment 3

SAMPLE LETTER TO SPONSOR'S FIRST SERGEANT/COMMANDER

Figure A3.1. Sample Letter To Sponsor's First Sergeant/Commander.

673 MSG/CC
Bldg 8517, 20th Street
JBER, AK 99506

MSgt Joseph P. Smith
[Unit] Squadron Commander/First Sergeant
Via e-mail address: joseph.smith@us.af.mil

Dear MSgt Smith

The Joint Base Elmendorf-Richardson (JBER) Dependent Misconduct Board requests your attendance at our Board hearing being held on **Day Month Year**. MSgt John Doe of your organization and his/her dependent, Dependent Doe, have been notified as well and are urged to attend in response to a matter which occurred on **Day Month Year**. This hearing will be held on **Day Month Year** at 1400 in the Courtroom located on the third floor of the People Center, Building 8517, 20th Street, JBER, AK.

During the course of the hearing, the Board President will review any evidence and call any witnesses that he/she deems necessary. The President will offer requested attendees an opportunity to make a statement and present material, either orally or in writing, relevant to the matter.

Should the Board determine that the dependent committed the offense, an appropriate punishment will be determined. Punishments may include one or more of the following:

a. No action.

b. Verbal counseling or admonishment by the DMB President.

c. A formal letter of admonishment or warning issued by the DMB President or the sponsor's commander.

d. Refer the offender and/or sponsor to an off-base agency for counseling or rehabilitation.

e. Refer the offender to a local government's shoplifter's education program.

f. Place certain areas or base functions off-limits to the offender.

g. Impose a curfew.

h. Suspend or revoke certain privileges, including, but not limited to: access to the base exchange or commissary, on-base driving, and entering certain buildings or accessing certain areas of the base.

i. Terminate military family housing for the offender and/or family with the concurrence of the 673 ABW/CC.

j. Require that the offender perform specified community service for a required number of hours, providing that adequate supervision is provided (e.g., refuse collection, grounds maintenance, pulling weeds, or other similar activities).

k. Refer the offender to an off-base community service program (e.g., the Salvation Army®, Goodwill®, or other similar organization).

l. Require that the offender submit a formal apology to the party or parties offended, or an essay reflecting on his/her offense.

m. The DMB should inform the offender that an unsigned version of the essay could be published in the base paper or public affairs newsletter to deter other would-be offenders.

n. Order restitution be paid and/or made by the offender.

o. Recommend debarment of the offender to the 673 ABW/CC

The Dependent Misconduct Program is not meant to replace of nor do away with maintaining healthy relationships, parental roles in disciplining their child(ren), or ensuring appropriate conduct of dependents, but instead to provide a more formal rehabilitative tool to assist military sponsors as needed.

Please ensure MSgt John Doe is available and attends the scheduled forum. Should you have any further questions or concerns involving this matter, please contact me by e-mail or by calling 552-xxxx.

Sincerely

JANE F. DOE, Col, USAF
Dependent Misconduct Board President

Attachment 4

SAMPLE LETTER TO APPEAR

Figure A4.1. Sample Letter To Appear.

673 MSG/CC
Bldg 8517, 20th Street
JBER, AK 99506

MSgt John Doe
1234 Bosler Drive
JBER AK 99506

Dear MSgt Doe

The Joint Base Elmendorf-Richardson (JBER) Dependent Misconduct Board has directed that you and your dependent, **Dependent Doe,** attend a hearing addressing the event during which **Dependent Doe [briefly describe the misconduct]**, which occurred on **Day Month Year**. This hearing will be held on **Day Month Year [provide at least two weeks' notice] at 1400** in the **Courtroom located on the third floor of the People Center, Building 8517, 20th Street, JBER, AK.**

During the course of the hearing, the Board will review any evidence and call any witnesses that it deems necessary. The Board President will offer you and your dependent an opportunity to make a statement, either orally or in writing. You may offer any other evidence, so long as the Board President finds that it is relevant to the case.

Should the Board determine that your dependent committed the offense, an appropriate punishment will be determined. Punishments may include one or more of the following:

a. No action.

b. Verbal counseling or admonishment by the DMB President.

c. A formal letter of admonishment or warning issued by the DMB President or the sponsor's commander.

d. Refer the offender and/or sponsor to an off-base agency for counseling or rehabilitation.

e. Refer the offender to a local government's shoplifter's education program.

f. Place certain areas or base functions off-limits to the offender.

g. Impose a curfew.

h. Suspend or revoke certain privileges, including, but not limited to: access to the base exchange or commissary, on-base driving, and entering certain buildings or accessing certain areas of the base.

i. Terminate military family housing for the offender and/or family with the concurrence of the 673 ABW/CC.

j. Require that the offender perform specified community service for a required number of hours, providing that adequate supervision is provided (e.g., refuse collection, grounds maintenance, pulling weeds, or other similar activities).

k. Refer the offender to an off-base community service program (e.g., the Salvation Army®, Goodwill®, or other similar organization).

l. Require that the offender submit a formal apology to the party or parties offended, or an essay reflecting on his/her offense.

m. The DMB should inform the offender that an unsigned version of the essay could be published in the base paper or public affairs newsletter to deter other would-be offenders.

n. Order restitution be paid and/or made by the offender.

o. Recommend debarment of the offender to the 673 ABW/CC

The Dependent Misconduct Board is not meant to take the place of nor do away with your part in disciplining your dependent or ensuring appropriate conduct of your dependent, but instead it provides a more formal rehabilitative tool to help you and your dependent. Since it is a rehabilitative program, community service is the preferred form of disciplinary action. Your active involvement in the program can have a positive impact on the Board's decisions.

It is recommended that prior to the day of the hearing, you help your dependent examine his/her actions that resulted in this incident and prepare your dependent to discuss the alleged acts of misconduct in a mature, truthful fashion.

Please acknowledge receipt of this memorandum **no later than 1400 on Day Month Year** by responding by e-mail or by telephone at (907) 552-xxxx. Should you have any further questions or concerns involving this matter, please contact me.

Sincerely

JANE F. DOE, Col, USAF
Dependent Misconduct Board President